



File No.: EXP202318144

RESOLUTION OF RIGHTS PROCEDURE

In view of the complaint filed on October 2, 2023, with this Agency by A.A.A., against EUROBOX, S.A., for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of access against EUROBOX, S.A. with NIF A11611282 (hereinafter, the respondent), and their request, as stated by the complainant, did not receive the legally established response.

The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised:

- Email (08/25/2023) forwarding their access request to the respondent
- Request attached to the previous email
- Email of "acknowledgment of receipt" issued by the respondent, announcing that it would be forwarded to the responsible department.

After this correspondence, the complainant states that they did not receive any response.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated them, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The previous communication was duly notified to the respondent on 12/18/2023. In response to it, the respondent states the following:

- That they received the request for the exercise of the right of access from the complainant
- That notwithstanding the above, it was not answered due to a "human error"
- That they would have proceeded to send the response to the complainant

Attached to their response is the email addressed to the complainant, along with a "download certificate" that would certify that the complainant had accessed the response to the right of access.

THIRD: Based on the previous response from the respondent, dated 03/27/2024, this Agency issued a resolution to archive the complaint, considering that the right of access exercised by the complainant had been attended to.

FOURTH: On 04/04/2024, the complainant filed a motion for reconsideration against the aforementioned resolution of archiving, considering that the exercised right of access had not been fully attended to, as not all aspects contained in the request submitted by the complainant had been answered.

FIFTH: On 07/05/2024, after granting a hearing to the respondent, this AEPD issued a favorable resolution of the motion for reconsideration, ordering the continuation of the procedure.

SIXTH: Initiating the procedure for the exercise of the right of access in accordance with Article 64 of the LOPDGDD, the respondent was granted (on 07/09/2024) a period of fifteen days to submit allegations.

Although the notification of this procedure was duly carried out, with the corresponding acknowledgment of receipt in the file, no allegations have been received from the respondent.

LEGAL GROUNDS

FIRST: The Presidency of the Spanish Agency for Data Protection is competent to resolve, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including enforcing the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with that authority.

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In accordance with this regulation, prior to the admission of the claim that gives rise to this procedure, the claim was forwarded to the responsible entity for analysis, which was required to respond to this Agency within one month and to demonstrate that it had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim to be upheld.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the claimant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than within a month.

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unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding the fulfillment of the

duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

FOURTH: According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, in such case, the right of access to the personal data." Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data has been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

In the case analyzed here, the claimant exercised their right of access against the respondent. Although the latter sent its response to the former, the documentation in the file does not indicate that the request was fully answered. As stated in the claimant's appeal submission, issues such as the following would not have been addressed:

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"All stored information, including user session records, start and end times, authentication, reason for disconnection or inactivity, device information, and other data (IP, operating system, browser, etc.). All stored information regarding deposits, withdrawals, placed bets, and granted bonuses. Categorization of my profile as a restricted, limited, or at-risk user and the motivation for such categorization.

Complete history of player statuses (CNJ Status and Operator Status), including dates from which the player has been in each status, reported to the General Directorate of Gaming Regulation in accordance with section 3.5.7.2 (Player Status) of Annex I of the "Resolution of October 6, 2014, of the General Directorate of Gaming Regulation, approving the data model of the monitoring system for information corresponding to gaming operation records."

The recipients or categories of recipients to whom my personal data has been communicated, or will be communicated, including, where applicable, recipients in third parties or international organizations and information about the appropriate safeguards relating to the transfer of my data to a third country or to an international organization, where applicable.

The expected retention period, or if not possible, the criteria for determining this period.

If there are automated decisions, including profiling, significant information about the logic applied, as

well as the importance and expected consequences of such processing."

These issues were referred to the responding party, and during the allegations phase conducted within this rights exercise procedure, no allegations were presented.

In the case analyzed here, with the documentation available in the procedure, as can be inferred from the allegations made and the documentation provided by the responding party in the process of transferring the claim, it is verified that the access granted by the responding entity is incomplete.

Considering the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the claim made by A.A.A. and to urge EUROBOX, S.A. with NIF A11611282, to send to the claiming party, within ten working days from the date this resolution becomes final and enforceable, a certification addressing the requested right of access or a reasoned denial indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR. SECOND: NOTIFY this resolution to A.A.A. and to EUROBOX, S.A.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. 1037-16012024

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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